

Washington Legal and Evidence Analysis

Voluntary political sworn-statement records - research memorandum, adverse authority, and factual-readiness appendix

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- + Washington notarial, false-swearing, perjury, jurisdiction, and evidence analysis
 - + Constitutional, election-law, publication, privacy, and interstate constraints
 - + Adverse authority, unresolved questions, litigation postures, and proof requirements
 - + A recipient-oriented authority appendix with primary-source links

AI-assisted discussion draft for recipient review only. Internal review found changes required; not DGG-approved, counsel-approved, or launch-cleared. Not legal advice. Current Phase 0 permits fictional/tabletop work only - no real signer, oath, notarial act, candidate outreach, recruitment, or live interview. Authority cutoff: August 30, 2026.

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Content assembled from the project research repository.

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How to use this attachment

This attachment is designed to make the underlying idea easy to evaluate. It does not ask the recipient to adopt the legal conclusions, recruit a participant, sign a statement, or perform a notarial act. Independent Washington counsel should review the exact facts, form, script, consent process, and public claims before any real-world activity.

Part I - Legal Research Memorandum

Question presented

Can DGG use a private, voluntary, opt-in interview format in which willing public figures place a narrow set of factual statements into a Washington-notarized sworn record, and can DGG accurately say that knowingly false statements may have legal consequences without overstating perjury, interstate jurisdiction, or extradition?

Short answer

Possibly - but only with a narrower and more guarded theory than the archival drafts sometimes suggest. Washington already authorizes notaries to administer oaths and take verifications on oath or affirmation. Current law includes a safeguarded record-based remote route, and legislation effective January 1, 2027 expands that framework. While the remand remains open, however, present Phase 0 is a pure fictional mock with no real signer, oath, or notarial act. A nonpublic, in-person, Washington-only paper record is only a possible future actual-test risk control after reviewed supersession and all gates; no DGG remote act is authorized at this stage.

If a participant knowingly makes a false statement in a valid sworn record, Washington **false swearing** is the clearest possible criminal reference point because its statutory elements do not require materiality or an official proceeding. A first-degree **perjury** theory is colorable but not dependable for public messaging: the statute includes a notary in the definition of official proceeding, yet no reported Washington appellate decision located in this review squarely holds that a private media-format session before a notary necessarily qualifies.

The criminal-law theory is only one layer. Territorial jurisdiction, proof beyond a reasonable doubt, limitations and tolling, prosecutorial discretion, and interstate process remain independent gates. DGG cannot create a prosecution by contract, and notarization does not certify that an answer is factually true.

The concept should therefore be evaluated as a **commitment-and-record system** with a possible legal backstop - not a private perjury trap. The present pure mock should model advance factual prompts, a real opt-out, personal-knowledge qualifications, participant-controlled correction before any hypothetical execution, a completely new act for any hypothetical substantive post-execution correction, independent notary control, separate recording/publication consent, evidence preservation, and prepublication review. Those controls are tabletop requirements, not authority to execute an act. No public refusal label is authorized in Phase 0.

0. Executive decision brief

Decision

Proceed only with counsel-reviewed synthetic/tabletop Phase 0 work. While the remand remains open, use only fictional facts in a pure mock with no real signer, oath, or notarial act. A future reviewed supersession may propose an actual test verification, but its minimum design would contain only literally true, personal-knowledge statements about the test itself, with one tangible paper **Canonical Sworn Record** as the sole oath object and a separate unsworn conversation. No signer may ever swear to a fictional role-play assertion. Do not use a named target or public-figure participant, publish a refusal/nonresponse status, conduct a DGG remote act, or launch a free-form "everything said from this point forward is under oath" livestream.

Why the concept is legally viable

1. Washington law expressly recognizes administering an oath and taking a verification as notarial acts. A verification is a declaration under oath that a statement in a record is true. [RCW 42.45.010](#).
2. Washington false swearing reaches a knowingly false statement under an oath required or authorized by law. An oath administered by a person authorized by state law is within the current definition. [RCW 9A.72.010\(5\), .040](#).
3. Washington amended that definition in 1995 after an older case had applied a narrower version, then expressly reenacted the amended language without change in 2001 in response to *State v. Thomas*. The authorized-oath-administrator route is the text on which the modern notarial theory relies. [1995 Wash. Laws ch. 285, § 30](#); [2001 Wash. Laws ch. 171, §§ 1 - 2](#).
4. Washington has an established record-based remote-notary framework, but DGG's present Phase 0 permits no actual notarial act. A future actual-test branch may propose an in-person tangible record only after reviewed supersession and all gates. The remote route remains quarantined research rather than an operating instruction. [RCW 42.45.280](#); [chapter 308-30 WAC](#).
5. Behavioral studies provide a rational basis for a pilot: some voluntary honesty-oath interventions reduced dishonest reporting in controlled online and laboratory settings. The effects varied, were not universal, and have not been validated for political interviews. The correct claim is “worth testing,” not “proven to fix political lying.”

Five red lines

- Do not say the notary verifies truth.
- Do not say any false statement automatically is perjury.
- Do not imply that declining proves dishonesty.
- Do not promise Washington jurisdiction, prosecution, conviction, or extradition.
- Do not use a 2026 oath-only remote oral interview as the legal core.

Minimum launch gates

- Washington criminal/notary counsel signs off on the exact record, jurat, script, correction procedure, and public claims.
- Media/privacy counsel signs off on recording consent, release, editing, publication, storage, and incident response.
- Participant-state counsel clears any interstate session.
- The commissioned notary confirms only that the requested act and workflow can be completed lawfully and remains free to refuse or stop; the notary does not approve content or provide DGG legal advice.
- DGG performs a dry run with no public figure and audits the complete record chain.
- Pilot outcomes and adverse effects are preregistered before the first invitation.

1. The project DGG should defend

DGG's strongest case is not that ordinary political disagreement should become criminal. The project is a voluntary format that lets a speaker make a narrower choice:

1. place defined, factual, personal-knowledge answers into a sworn record;
2. answer in the ordinary unsworn interview lane; or
3. decline either a particular sworn question or the sworn format altogether.

The distinction matters. Predictions, values, advocacy, interpretation, rhetoric, humor, and opinions are often not suitable for a truth-attestation form. The sworn lane should be limited to propositions capable of being framed with a time, subject, predicate, source-of-knowledge qualifier, and answer set.

No identified refusal status is authorized through Phase 2 under the present control. If a later phase proposes one, it must be reported descriptively, not inferentially. “Declined the sworn-format invitation” may describe a documented event; “refused to tell the truth” adds a defamatory or misleading implication the event does not establish.

If a later phase separately authorizes publication, the project's potential public purpose could be stated without criminal sensationalism. The following is future-phase wording only, not current publication permission:

DGG would offer public figures a consistent way to separate factual commitments they are willing to swear or affirm from ordinary argument and commentary. The notary would verify the act, identity, signature, and oath - not the truth of the political claim. If authorized after review, DGG would publish the record and its provenance so audiences could judge it for themselves.

1.1 Factual posture and assumptions

This memorandum analyzes a proposed system, not an operating program or completed litigation record. The facts presently verified from the public repository are limited: the project is under an internal adversarial audit remand; Phase 0 is constrained to a pure fictional mock without a real signer, oath, or notarial act; and no named participant, public status, participant/program publication, remote DGG act, or criminal-enforcement claim is authorized. A private, in-person Washington verification using literally true statements about the test itself is only a future design scenario requiring reviewed supersession and every gate. The durable fact/assumption boundary, missing-fact list, potential dispute postures, and exhibit plan are maintained in the ‘facts and evidence packet’.

The legal analysis assumes - but the present record does not prove - that DGG is genuinely private and nongovernmental; participation and question-level decline are meaningful choices; no access, benefit, penalty, censure, badge, or government consequence turns on participation; the notary is independent; DGG remains candidate-neutral in Phase 0; and no participant-level material goes to a government agency. Entity status, funding and payer facts, government and candidate contacts, intended distribution, exact forms, data architecture, and participant configuration remain missing facts. A conclusion that depends on one of those predicates must travel with the assumption and must be revisited if the facts differ.

This factual boundary also limits litigation language. The record can support legal research, synthetic comprehension testing, and identification of potential claims and defenses. It cannot yet support standing, ripeness, a merits pleading adopted by counsel, a prediction of enforcement, or a representation that the system has proven efficacy.

2. Washington's notarial chassis

2.1 What the notary can do

Washington's notarial statute defines a notarial act to include administering an oath or affirmation and taking a verification on oath or affirmation. It defines a verification as a declaration, made by an individual on oath or affirmation before a notarial officer, that a statement in a record is true. A record may be tangible or electronic. [RCW 42.45.010](#).

For a verification, the individual must make the statement and sign the statement in the notary's presence as the law defines presence. [RCW 42.45.030\(2\)](#). Identity must be established through personal knowledge or satisfactory evidence, and the notary may demand more information or credentials. [RCW 42.45.050](#).

The notary is an independent legal actor, not DGG's stage prop. The notary may refuse if not satisfied that the participant is competent or has capacity, or that the signature is knowing and voluntary; the notary generally may refuse unless another law prohibits refusal. [RCW 42.45.060](#).

2.2 What the notary does not do

The notary does not:

- investigate the underlying political claim;
- warrant that an answer is accurate;

- determine whether an offense occurred;
- decide whether Washington has territorial jurisdiction;
- promise that a prosecutor will act; or
- waive the participant's legal rights.

The notarial certificate evidences the act and certifies the officer's compliance with the determinations specified by law. It does not conclusively prove factual truth, legal sufficiency, capacity, competence, or voluntariness. DGG must keep the certificate's function separate from editorial fact-checking and audience claims. [RCW 42.45.130\(5\)](#).

Washington rules prohibit an endorsement or promotion when the notary's title or seal is used. As a broader project-independence policy, DGG must not solicit any notary testimonial, "certified honest" badge, content approval, or promotional notarial branding beyond the certificate and an accurate explanation of the act. [WAC 308-30-230](#).

2.3 In-person branch

Washington notaries may administer oaths generally, and the statutory oral-testimony form contemplates a promise to make "true answers." [Chapter 5.28 RCW](#). The current pure mock may model - but must not execute - a possible future workflow using a concise tangible record presented and signed before the notary. A fixed record would make the proposition, scope, correction, version, and signature easier to prove and audit. In any later authorized act, personal appearance, identity, certificate, and generally applicable journal requirements would apply. The notary would retain refusal authority if not satisfied about capacity/competence or a knowing and voluntary signature; that would not be a certificate of voluntariness. [RCW 42.45.060](#).

A standalone in-person oral oath is legally stronger than a 2026 remote oath-only theory, but it creates a certificate/proof question: DOL guidance describes the verbal oath as primarily oral, while RCW 42.45.130 states that every notarial act must be evidenced by a certificate. Use an approved fixed-record jurat unless rulemaking, an authoritative interpretation, or controlling law resolves that tension; counsel and an individual notary cannot override RCW 42.45.130.

2.4 Current 2026 remote law - quarantined research route

No DGG remote act is authorized by this memorandum's current disposition. If counsel later evaluates a 2026 record-based remote verification, the legal sequence would need to include:

1. The participant receives and reviews a version-identified electronic answer sheet.
2. The participant joins a platform approved by a Washington notary who holds the required commission and electronic-records and remote-notary endorsements.
3. The notary establishes identity through personal knowledge, a qualifying credible witness, or the prescribed two-method identity-proofing route, and completes the communication-technology checks.
4. The participant confirms that the record displayed to the notary is the same record the participant will sign.
5. The participant signs electronically and swears or affirms that the statements in that record are true, subject to the written qualifications.
6. The notary completes the remote jurat, journal entry, and required audiovisual record and secures them for the required period.

Current WAC 308-30-290 lists a remote verification on oath or affirmation but does not list standalone remote administration of an oath. The certificate in WAC 308-30-320 is framed as "signed and sworn" by communication technology. Current RCW 42.45.280 also centers the remote process on a record. [Chapter 308-30 WAC](#).

The Washington notary must remain physically in Washington, and the certificate venue is the notary's Washington location - not the participant's location. A generic videoconference is insufficient. The complete system must supply the required endorsements, identity route, same-record confirmation, tamper-evident electronic-signature/certificate association, audiovisual recording, and retention. If the prescribed identity-proofing route is used, credential analysis and dynamic

knowledge-based authentication apply. If the participant exits the workflow, identity verification must restart. A participant outside the United States also triggers the transaction-nexus and foreign-law conditions in RCW 42.45.280(3)(d).

This means the 2026 sworn record may summarize or attach defined responses from an interview, but DGG should not claim that every improvised sentence in a free-form remote conversation is independently under a valid Washington oath.

2.5 Remote branch beginning January 1, 2027

Substitute HB 2158, enacted as 2026 Washington Laws chapter 21, adds express remote procedures for tangible records and standalone administration of an oath or affirmation beginning January 1, 2027. The House bill report explains that remote oaths were not explicitly addressed in the earlier update. Implementation rulemaking began with CR-101 WSR 26-09-147, filed April 22, 2026; no adopted implementation rule was located by this memorandum's cutoff. [HB 2158 history](#); [House Bill Report](#); [WSR 26-09-147](#).

That future authority improves the case for a bounded oral sworn segment. "Standalone" does not facially eliminate RCW 42.45.130's certificate requirement. The expansion also does not eliminate the need for defined questions, recorded consent, identity, retention, territorial-jurisdiction analysis, or a written post-session record. DGG must recheck the RCW, adopted WAC, Department of Licensing guidance, and the notary's platform after the effective date.

3. Washington criminal consequences

3.1 False swearing is the clearest possible offense

Washington defines false swearing as making a false statement, known by the speaker to be false, under an oath required or authorized by law. It is a gross misdemeanor. The statute does not state a materiality or official-proceeding element. [RCW 9A.72.040](#).

The Washington Supreme Court confirmed those two omissions in *In re Recall of Pearsall-Stipek*: false swearing contains no materiality limitation and can apply to knowingly false statements under an authorized oath in or out of an official proceeding. [141 Wn.2d 756, 774 - 78, 10 P.3d 1034 \(2000\)](#). The retraction discussion appears at page 779. That was a recall-petition sufficiency decision, not a criminal conviction involving a private media format, so it confirms the elements without deciding DGG's application.

The modern authorized-oath element has two alternative routes: an oath specifically provided by statute or regulation, or an oath administered by a person authorized by state, tribal, or federal law to administer oaths. [RCW 9A.72.010\(5\)](#). A properly commissioned Washington notary performing an authorized notarial act supplies a serious textual basis for the second route.

The adverse case and why it is not ignored

In *State v. Hovrud*, the Court of Appeals reversed a false-swearing conviction arising from an insurance-policy examination because the then-current definition required the oath to be specifically provided by statute or regulation. The court applied strict construction and emphasized fair warning. [60 Wn. App. 573, 805 P.2d 250 \(1991\)](#).

In 1995, the legislature amended the definition to add the route now covering an oath administered by a legally authorized oath administrator. [1995 Wash. Laws ch. 285, § 30](#). In 2001, it expressly reenacted the definition without change in response to *State v. Thomas*. [2001 Wash. Laws ch. 171, §§ 1 - 2](#). The amended and reenacted text materially strengthens the DGG theory and limits *Hovrud*'s direct application. Even so, no reported appellate case located in this review applies the authorized-administrator route to a voluntary private political-media verification. The memorandum therefore calls false swearing the clearest **possible** offense, not a guaranteed charge.

3.2 First-degree perjury is colorable but uncertain

First-degree perjury requires all of the following:

- an official proceeding;
- a materially false statement;
- knowledge that the statement is false; and

- an oath required or authorized by law.

It is a class B felony. Knowledge of materiality is not required, but materiality itself is. [RCW 9A.72.020](#).

The argument for DGG begins with the definition of official proceeding, which includes a proceeding heard before a governmental agency or official authorized to hear evidence under oath, “including” a notary or other person taking testimony or depositions. [RCW 9A.72.010\(4\)](#). A structured session in which an authorized notary hears a defined verification is therefore textually colorable.

The limitation is equally important. Research located no controlling Washington decision holding that a privately organized media verification becomes an official proceeding merely because a notary is present. *State v. Jacobson* held that a written affidavit submitted to and used in a court hearing could support perjury because it was given in aid of that official proceeding. [74 Wn. App. 715, 876 P.2d 916 \(1994\)](#). DGG lacks the court-hearing connection that made *Jacobson* straightforward.

The archival drafts’ reliance on *State v. Smith* and *State v. Otton* must also be narrowed. Those opinions interpret “other proceeding” under an evidence rule governing prior inconsistent statements. They do not interpret “official proceeding” in RCW 9A.72.010. They may be used, if at all, as a limited reliability analogy - not as an element-satisfying chain.

Publicly defensible language is:

A knowingly false statement in a valid Washington sworn record may implicate false swearing. First-degree perjury is a separate, less certain theory that would require proof of materiality and that the particular session qualified as an official proceeding.

Second-degree perjury is not the ordinary DGG theory. It requires either an examination under oath under an insurance contract or a materially false statement made with intent to mislead a public servant in the performance of a duty. An ordinary private interview directed to voters supplies neither branch merely because a notary participates. [RCW 9A.72.030](#).

3.3 Mistake, disagreement, and lack of knowledge

Neither offense punishes mere error. The prosecution would have to prove the required falsity and knowledge beyond a reasonable doubt. Ambiguous questions, changing circumstances, reasonable reliance on records or staff, memory failures, predictions, opinions, and disclosed uncertainty can defeat or complicate proof.

At the same time, Washington provides that every unqualified statement of what the speaker does not know to be true is equivalent to a statement the speaker knows to be false. [RCW 9A.72.080](#). DGG must never force a guess. Each prompt should offer:

- “Yes, based on my personal knowledge.”
- “No, based on my personal knowledge.”
- “I do not know and cannot certify this.”
- “I can answer only with the following qualification: ____.”
- “I decline this sworn question.”

3.4 Proof and corroboration are separate gates

A valid oath and a provably inaccurate answer do not alone establish a criminal case. Washington applies an unusually demanding corroboration rule to perjury: the State generally needs direct testimony contradicting the oath plus another direct witness or independent corroborating evidence strong enough to be inconsistent with innocence. *State v. Arquette* reversed first- and second-degree perjury convictions because the corroborating evidence did not satisfy that standard. [178 Wn. App. 273, 283 - 90, 314 P.3d 426 \(2013\)](#).

[WPIC 118.12, “Perjury or False Swearing - Requirements of Proof”](#), extends a heightened corroboration instruction to false swearing, but it is committee guidance rather than a binding holding, and this review located no appellate false-swearing conviction squarely deciding that extension. DGG should therefore preserve accurate provenance without suggesting that a

contradiction, clip, or fact-check by itself establishes guilt. RCW 9A.72.050's alternative-inconsistent-statement mechanism also depends on material statements made under oath in official proceedings, so DGG cannot assume that special route applies to its private format.

3.5 Oath formalities and irregularities

State v. Lewis supports a functional oath: no theatrical ritual or fixed religious wording is required when the person deliberately and unequivocally assumes the obligation of an oath. The case involved the notary's absence and a fact-limited irregularity holding; it does not validate defective notarization generally. The correct citation is 85 Wn.2d 769, 539 P.2d 677 (1975), not the conflicting citation in one archival draft. [Opinion](#).

The case is not permission to improvise. Its holding was limited, and RCW 9A.72.070 provides that some oath irregularities or a particular administrator's lack of authority are not defenses when the oath itself was required or authorized by law. A defective session therefore creates uncertainty rather than a reliable "no liability" escape. DGG should use a counsel-selected, statutorily compliant certificate, prefer the statutory short form, and follow a notary-controlled checklist.

3.6 Correction and retraction

Washington's statutory retraction protection is narrow. It requires retraction in the same proceeding, before exposure is or will be manifest, and before the falsification substantially affects the proceeding. [RCW 9A.72.060](#). DGG cannot promise that an after-the-fact correction prevents liability.

The workflow should nevertheless create the best honest opportunity to correct:

1. After each answer, the participant may correct or qualify before final verification.
2. Before execution and the oath, the participant reviews and freezes the complete record.
3. Once the record is executed, no one edits or silently replaces it.
4. Any substantive post-execution correction requires a completely new record, signature, oath or affirmation, certificate, and any required journal entry.
5. The new act is append-only linked to the superseded record, and neither DGG policy nor a new act is represented as a guaranteed statutory defense.

This is an accuracy and fairness measure, not a promised safe harbor.

3.7 Maximum penalties, limitation periods, and charging discretion

First-degree perjury is a class B felony; the general statutory ceiling is ten years and/or a \$20,000 fine. False swearing is a gross misdemeanor; the ceiling is 364 days and/or \$5,000. [RCW 9A.20.021](#). Those are maximum statutory ceilings, not forecasts.

The ordinary limitation period for an otherwise unlisted felony is three years and for a gross misdemeanor is two years. A project-specific exception matters because DGG may approach officeholders: a felony committed by a public officer in connection with official duties, as a breach of public duty, or in violation of the oath of office has a ten-year period. Whether that branch covers a particular statement is fact-dependent; it could affect a first-degree-perjury theory but does not change false swearing's two-year gross-misdemeanor period. Washington's tolling rule stops the clock while the accused is not usually and publicly resident in the state. [RCW 9A.04.080\(1\)\(c\)\(i\), \(1\)\(j\) - \(k\), \(2\)](#). In *State v. Willingham*, the Supreme Court distinguished a short trip from relocation; earlier cases applied tolling when the person lived outside Washington. [169 Wn.2d 192, 234 P.3d 211 \(2010\)](#). This issue may materially extend exposure for a nonresident, but only if Washington first has jurisdiction over the alleged crime.

Washington prosecutors, not DGG, prosecute criminal actions. [RCW 36.27.020](#). DGG may preserve a record and respond lawfully to process. It must not threaten a participant with prosecution, bargain over referral, or describe the format as deputized enforcement.

4. Interstate participants and Washington territorial jurisdiction

4.1 A Washington remote notary does not automatically create Washington criminal jurisdiction

RCW 9A.04.030 includes several possible territorial routes:

- a crime committed wholly or partly in Washington;
- an out-of-state act affecting persons or property in Washington that would be a crime if committed within the state; and
- an express route for specified out-of-state statements under chapter 5.50 RCW that would be perjury if made in Washington.

[RCW 9A.04.030](#).

The special chapter 5.50 route does not say “every statement notarized by a Washington notary.” A DGG jurat should not be publicly described as a jurisdiction-selection device.

The “partly in Washington” and Washington-effects routes are fact-dependent. The notary’s physical location, platform servers, DGG’s location, intended audience, subject matter, publication, and alleged harm could matter, but no DGG-like appellate decision was found. In *Jacobson*, an out-of-state transfer affected Washington residents’ existing property rights and frustrated a Washington court order - a much stronger nexus than ordinary online political speech. [74 Wn. App. at 722 - 23](#).

4.2 Extradition is a downstream legal possibility, not the product

Chapter 10.88 RCW supplies Washington’s extradition procedures, but direction matters. RCW 10.88.250 governs Washington acting as the **asylum state** - Washington’s governor may surrender a person found in Washington to another demanding state even when the person was not present there, subject to the statute. It does not determine whether another state will surrender a participant to Washington. For an outgoing Washington demand, RCW 10.88.400 - .410 addresses the governor’s demand; actual surrender, including discretionary treatment of a person never present in Washington, depends on the asylum state’s law. The federal fugitive statute addresses a person who was present and fled. [RCW 10.88.250](#); [RCW 10.88.400](#); [RCW 10.88.410](#); [18 U.S.C. § 3182](#). RCW 10.96.060 permits criminal process inside or outside Washington for matters already within RCW 9A.04.030; it does not supply the missing jurisdictional premise. [RCW 10.96.060](#).

The accurate sequence is:

1. conduct allegedly satisfies every offense element;
2. Washington has territorial jurisdiction;
3. investigators develop admissible evidence and probable cause;
4. an authorized prosecutor brings a valid charge;
5. required judicial and executive processes occur; and
6. the receiving state’s executive and judicial processes address the request and available challenges.

DGG should not estimate the practical likelihood of extradition without evidence from the relevant authorities. “Legally conceivable after multiple independent gates” is the outer claim this research supports.

4.3 Interstate launch rule

Before inviting a non-Washington participant, DGG should obtain a short written conflicts review covering:

- law of the participant’s location;
- authority and territorial limits of the Washington notary;
- recording consent;

- privacy and publicity rights;
- defamation and false-light rules;
- criminal jurisdiction and limitations;
- professional or campaign-law rules; and
- subpoena, preservation, and cross-border data-transfer issues.

If that review is not complete, use the unsworn interview lane.

5. Federal and constitutional boundaries

5.1 No default federal perjury or false-statements theory

Federal perjury under 18 U.S.C. § 1621 requires, among other things, an oath in a case in which a law of the United States authorizes the oath. A Washington notarial act for a private interview does not by itself create that federal-law hook. The analysis changes if a statement is made as a qualifying declaration under 28 U.S.C. § 1746 or is submitted in a federally authorized proceeding. [18 U.S.C. § 1621](#); [28 U.S.C. § 1746](#).

The federal false-statements statute, 18 U.S.C. § 1001, generally concerns materially false statements in a matter within federal executive, legislative, or judicial jurisdiction. It is not a general federal ban on lies confined to a private media organization, but routing through a private intermediary does not necessarily foreclose the statute if the statement is intended for or used in a federal matter. [18 U.S.C. § 1001](#).

DGG should not display federal criminal citations merely to increase perceived stakes.

5.2 Private voluntary format and state action

Assuming the unverified private-actor predicate in AS-001, the First Amendment generally restrains government, not a genuinely private media organization offering a voluntary interview format. *Manhattan Community Access Corp. v. Halleck* states the ordinary rule and the limited circumstances in which private action may be attributed to the government. A government license, contract, or monopoly is not enough by itself. [587 U.S. 802, 808 - 09, 812 - 14 \(2019\)](#).

Applying that rule here is an inference: no controlling case addresses a publisher's use of a state-commissioned notary. The notary performs a legally authorized act, but that should not by itself convert DGG's separate invitations, questions, labels, or editing into state action. The analysis changes if officials direct, coerce, significantly encourage, jointly operate, or become entwined with DGG's decisions. DGG should preserve private editorial control, accept no governmental direction about whom to invite or how to label answers, and reject any exclusivity or access arrangement that turns "voluntary" into a practical government condition.

The format should remain an offer, not a legal prerequisite to ballot access, office, debate access controlled by the state, benefits, licenses, or government press credentials. A government-hosted repository would require a separate classification under *Shurtleff v. Boston*: history, public perception, the government's actual control over messages, and the program's access rules help distinguish government speech from a forum for private speech. [596 U.S. 243, 252 - 59 \(2022\)](#). Branding a registry as governmental would not by itself resolve the question.

5.3 False political speech is not categorically unprotected

The government does not acquire a general power to punish a political statement merely because it is false. In *United States v. Alvarez*, four Justices rejected a categorical exception for false statements and invalidated the Stolen Valor Act under exacting review; Justices Breyer and Kagan concurred in the judgment using a proportionality-oriented form of intermediate scrutiny. The fractured decision leaves room for carefully confined laws tied to fraud, perjury, legally cognizable harm, or other established contexts. It does not support a general public truth tribunal. [567 U.S. 709, 717 - 23, 729 - 36 \(2012\)](#).

Washington's cases sharpen the warning. In *Rickert v. Public Disclosure Commission*, five Justices agreed that the challenged campaign-falsity rule could not constitutionally reach the nondefamatory statement at issue; Justice Sanders's broader denunciation of government as political "truth arbiter" spoke for four. In *State ex rel. Public Disclosure Commission v. 119 Vote*

No! Committee, five Justices agreed that the earlier statute was invalid as applied, but only three joined the broadest rationale; two concurring Justices reserved the possibility of a narrow, defamatory, actual-malice rule. [161 Wn.2d 843, 848 - 50, 854 - 56, 168 P.3d 826 \(2007\)](#); [135 Wn.2d 618, 625 - 28, 957 P.2d 691 \(1998\)](#). The separate opinions and exact judgments matter; slogans drawn from a plurality are not holdings of the full court.

Current RCW 29B.30.070 reflects a materially narrower legislative approach: it addresses specified false, defamatory statements of material fact about a clearly identified candidate in political advertising, requires actual malice, and assigns a clear-and-convincing proof burden. It is not a general license to adjudicate political truth. [RCW 29B.30.070](#). *Susan B. Anthony List v. Driehaus* shows how a complaint regime can create pre-enforcement standing and chill, but it is a standing decision, not a merits holding invalidating every campaign-falsity law. [573 U.S. 149, 158 - 67 \(2014\)](#).

An oath changes proof, formality, and potentially the applicable offense elements; it is not a constitutional solvent. No located controlling decision decides whether Washington may apply modern false swearing to this proposed private political-media record. DGG must therefore avoid any operator verdict that a claim is “false,” any public enforcement recommendation, and any suggestion that putting a political assertion under oath categorically removes First Amendment protection.

5.4 Do not convert the pilot into a government mandate or coercive pledge

A government requirement that a candidate adopt sworn assertions could compel the candidate's speech; a requirement that a publisher carry answers or prescribed status labels could intrude on editorial judgment. [*303 Creative LLC v. Elenis*, 600 U.S. 570 \(2023\)](#); [*Miami Herald Publishing Co. v. Tornillo*, 418 U.S. 241, 256 - 58 \(1974\)](#). These holdings do not invalidate every governmental oath, election filing, or factual disclosure; they show why DGG's proposal should remain a private media practice rather than a proposed qualification for candidacy.

Government also may define the scope of a funded program without ordinarily compelling a participant to affirm the government's position outside that program. [*Agency for International Development v. Alliance for Open Society International, Inc.*, 570 U.S. 205, 214 - 21 \(2013\)](#). The boundary is fact-dependent. Access conditions, funding, official endorsement, or government-directed labels could transform DGG's private invitation into an unconstitutional-conditions or compelled-speech problem.

Nor does the word “voluntary” end the inquiry. In *Ancheta v. Watada*, a federal district court treated an optional candidate pledge together with official identification of nonsigners and a censure mechanism as coercive and chilling. [135 F. Supp. 2d 1114, 1124 - 29 \(D. Haw. 2001\)](#). That decision is persuasive only, outside Washington, and requires current citator review. It nevertheless identifies the precise features DGG should exclude: no blacklist, badge, public nonsigner list, censure, interim adverse label, or loss of access for declining.

5.5 Identity, disclosure, and a government registry require separate analysis

Political anonymity and association receive constitutional protection. *McIntyre v. Ohio Elections Commission* invalidated a broad ban on anonymous campaign literature, while *Americans for Prosperity Foundation v. Bonta* required narrow tailoring for compelled donor disclosure under exacting scrutiny. [514 U.S. 334, 341 - 57 \(1995\)](#); [594 U.S. 595, 606 - 19 \(2021\)](#). These cases do not prohibit a speaker's informed voluntary decision to attach identity to a record.

The counterweight matters. Disclosure regimes can survive when the governmental interests, burdens, safeguards, and fit are established on the actual record; *Doe v. Reed* sustained the challenged petition-disclosure requirement against a facial claim, and *Citizens United v. Federal Election Commission* sustained specified disclaimer and disclosure provisions even while invalidating an expenditure restriction. [561 U.S. 186, 196 - 202 \(2010\)](#); [558 U.S. 310, 366 - 71 \(2010\)](#). DGG therefore should not claim that all identity disclosure is unconstitutional. It should say that a government registry, compelled participation, public-record status, retention, security, and associational burden require their own narrow, evidence-based design and review.

5.6 Editorial choice is not immunity from defamation or deception

A private publisher ordinarily chooses whom and what to publish, but edited context or material omissions can create a provably false factual implication. Candidates generally must satisfy the constitutional actual-malice standard for defamatory candidate coverage, yet that is a fault standard, not immunity. [*New York Times Co. v. Sullivan*, 376 U.S. 254, 279 - 80 \(1964\)](#); [*Monitor Patriot Co. v. Roy*, 401 U.S. 265, 271 - 72 \(1971\)](#).

Washington's more precise rule is that literal accuracy does not foreclose liability if the complete presentation creates a provably false factual impression. Material omissions can create such an impression, but mere negative inference, omission of favorable context, or juxtaposition of substantially true facts generally is insufficient. False-light analysis likewise requires falsity, although an implied provable fact can qualify. [*Sisley v. Seattle Public Schools*, 180 Wn. App. 83 \(2014\)](#); [*Jha v. Khan*, 24 Wn. App. 2d 377 \(2022\)](#); [*Milkovich v. Lorain Journal Co.*, 497 U.S. 1, 18 - 21 \(1990\)](#); [*Masson v. New Yorker Magazine*, 501 U.S. 496, 516 - 17 \(1991\)](#). If a later phase authorizes statuses, DGG should apply uniform invitations, publish the exact status, preserve the invitation and response, and place an anti-inference disclaimer adjacent to every status:

"Participation is voluntary. Declining or not responding does not imply dishonesty, falsity, guilt, or unwillingness to answer; reasons may include scheduling, legal advice, or preference for another format."

Use distinct facts:

- Explicit rejection: "Invited [date]; declined participation in this format [date]."
- Silence: "No response as of [date]."
- Never infer: "refused to swear," "would not tell the truth," "failed," or "would not risk perjury."

The disclaimer reduces contextual risk; it is not a safe harbor and cannot cure a knowingly inaccurate status or a presentation designed to insinuate dishonesty.

5.7 Broadcast, press-exemption, coordination, and debate triggers

An ordinary website or private online interview has no general federal candidate-use rule. If DGG uses regulated distribution, however, counsel must analyze "equal opportunities," bona fide news exceptions, and comparable opportunity under the facts - not promise identical airtime or assume an interview exemption. The framework can reach broadcast-station uses and separate cable-system, DBS, and SDARS origination rules. [47 U.S.C. § 315\(a\)](#); [47 C.F.R. § 73.1941](#); [47 C.F.R. § 76.205](#); [FCC Media Bureau DA 26-68](#).

Federal campaign-finance treatment also depends on DGG's ownership, control, payment, candidate involvement, and actual format. The contribution and expenditure press exemptions can cover qualifying news, commentary, and editorial activity, including website or Internet distribution, but are narrowed when the facility is candidate-, party-, or political-committee-owned or controlled. Coordination requires the payer, content, and conduct elements; formal agreement is unnecessary, and "materially involved" is the regulatory phrase. A one-on-one interview series is not automatically a candidate debate; the debate rule requires at least two candidates, no structure promoting one, and pre-established objective selection criteria. [52 U.S.C. § 30101\(8\)\(B\)\(i\), \(9\)\(B\)\(i\)](#); [11 C.F.R. § 100.73](#); [11 C.F.R. § 100.132](#); [11 C.F.R. § 109.21](#); [11 C.F.R. § 110.13](#).

Before inviting candidates, DGG must document its entity and tax status, ownership, payment sources, paid amplification, candidate contacts, and application of each payer/content/conduct and distribution rule. Washington campaign-law classifications and adjusted thresholds require a separate Title 29B decision tree; WAC 390-05-400 adjusts RCW 29B.25.120(2)'s printed \$100 amount to \$1,000 effective January 1, 2026. [WAC 390-05-400](#). This memorandum does not complete that fact-specific analysis.

6. Pennsylvania comparator

Pennsylvania is a useful **notarial-mechanics analogue**, not a parallel private criminal-penalty jurisdiction.

Pennsylvania's RULONA authorizes verifications on oath, certificates, and remote notarial acts. A Pennsylvania notary located in Pennsylvania may remotely notarize for a signer elsewhere in the United States. Identity may rest on personal knowledge, a

qualifying credible witness, or the prescribed identity-proofing route; electronic-certificate association must be tamper-evident, and the audiovisual record generally is retained for at least ten years. Final-form remote-notary regulations took effect March 28, 2026. [57 Pa.C.S. §§ 302, 304 - 306.1, 315, 320](#); [4 Pa. Code ch. 167, subch. H](#); [Pennsylvania Bulletin](#).

Pennsylvania also recognizes a valid notarial act performed under another state's law by an authorized notary. [57 Pa.C.S. § 311](#). That recognition gives the act notarial effect; it does not import Washington criminal law or establish Washington territorial jurisdiction.

The criminal comparison is materially different:

- Pennsylvania perjury requires a materially false sworn statement in an official proceeding.
- “Official proceeding” is governmental, and testimony or a deposition taken before a notary must be connected to such a proceeding.
- Pennsylvania false swearing generally requires an official proceeding, an intent to mislead a public servant, or a statement that law requires to be sworn before an authorized officer.
- Pennsylvania unsworn falsification likewise depends on specified governmental or legally authorized gateways.

[18 Pa.C.S. §§ 4501, 4902 - 4904](#).

As a statutory inference rather than a located appellate holding, a voluntary private DGG verification ordinarily does not fit Pennsylvania perjury or false swearing merely because it is notarized. Territorial jurisdiction under 18 Pa.C.S. § 102 cannot supply a missing offense element. Facts can change if the statement is submitted to government, used in an official proceeding, or required by law. DGG should not print “under penalty of Pennsylvania perjury/false swearing” unless Pennsylvania counsel identifies an independently applicable required oath or government proceeding.

Pennsylvania remains a credible operational alternative if DGG wants identity assurance, oath formality, remote appearance, and provenance without relying on a private criminal-deterrence theory. The public description should be “signed and affirmed before a notary,” not “facts verified by the notary.”

7. Recording, privacy, publication, and evidence governance

7.1 Washington requires a separate recording analysis

Washington generally requires the consent of all parties to record a private conversation or communication. Consent may be established by a recorded announcement to all parties when the announcement itself is recorded. [RCW 9.73.030](#). An unlawfully obtained recording is generally inadmissible, and chapter 9.73 provides civil remedies. [RCW 9.73.050](#); [RCW 9.73.060](#).

The remote-notary law's required audiovisual archive does not automatically authorize DGG to publish it. DGG should use two conceptually separate records:

Record	Controller	Purpose	Publication default
Notarial audiovisual archive and original journal	Notary or authorized repository under statute/contract; the notary remains responsible	Proof and compliance for the notarial act	DGG policy: never publish by default
DGG production master	DGG under participant release	Editing, publication, provenance, corrections	Publish only within release and policy

The notarial audiovisual file must be secured against unauthorized access, backed up, retained for at least ten years, and must not include images of the electronic record that was notarized. [WAC 308-30-330](#).

The original notarial journal is the notary's exclusive property and generally must be secured under the notary's direct and exclusive control. A Washington attorney-notary need not journal an act if professional-practice documentation is otherwise maintained, and the ordinary ten-year journal period runs from the last act chronicled in the journal. As a stricter DGG privacy

policy, DGG must not possess, photograph, publish, or place journal material in its repository. Likewise, the notary ordinarily may not keep a copy of the participant's record solely for the notarial transaction; DGG's retention of its own publication record must rest on a distinct release and custody policy. [RCW 42.45.180](#).

7.2 Consent should be layered and recorded

Before substantive discussion, the production master should capture affirmative consent to:

1. live audio and video communication;
2. the notary's legally required separate recording and retention;
3. DGG's production recording;
4. editing that does not materially alter meaning;
5. publication, excerpts, transcripts, captions, and syndication;
6. preservation of the original and later corrections;
7. identified security and retention periods; and
8. response to valid legal process.

Written releases should match the spoken consent. If any participant withdraws recording consent before the sworn act, stop and move to a nonrecorded option only if counsel and the notary approve; a remote notarial act generally cannot proceed without its required audiovisual record.

7.3 Data minimization

As a data-minimization and security policy, DGG should never receive or retain identity-proofing questions, credential images, knowledge-based-authentication answers, notary journals, seal credentials, or more personal data than the law and the production require. WAC 308-30-300 separately requires that the notary not be able to see or record dynamic knowledge-based-authentication questions or answers. The public repository must contain only blank forms, approved redacted samples, legal research, and synthetic dry-run data.

8. Recommended pilot architecture

8.1 Three clearly separated lanes for synthetic/tabletop testing

Lane A - sworn factual record

- Questions delivered in advance.
- Only defined, falsifiable, personal-knowledge propositions.
- Participant may qualify, say "I do not know," or decline any item.
- Final answers appear in one versioned, tangible paper Canonical Sworn Record.
- Only the exact CSR is the oath object; no transcript, source packet, production record, annotation, or later commentary is incorporated by reference.
- Counsel-selected compliant verification certificate; statutory short form preferred.
- No real signer, notarial act, participant/program publication, or named target/public-figure participant while the remand remains open; if a future supersession authorizes an actual test, the signer's identity and notarial records remain outside the public repository.

Lane B - unsworn conversation

- Analysis, policy, advocacy, predictions, values, explanation, and follow-up.
- Visually and verbally separated from Lane A.

- Never marketed as under oath.

Lane C - declined sworn format

- The participant may still take the ordinary interview.
- No identified invitation, decline, or nonresponse is published through Phase 2 under the present control.
- If a later phase considers a public status, it requires a new defamation, false-light, campaign, editorial, and methods review.

8.2 Question-design rule

A proposed sworn question should pass all of these checks:

- **Falsifiability:** Can evidence show the statement true or false?
- **Time:** What date or period does it concern?
- **Subject:** Who or what is the actor/object?
- **Predicate:** What precisely occurred or exists?
- **Knowledge:** Is the participant attesting personally, from specified records, or on information and belief?
- **Scope:** Are material exceptions disclosed?
- **Vocabulary:** Are key terms defined without partisan framing?
- **Answerability:** Can the participant truthfully choose “unknown,” qualify, or decline?
- **Relevance:** Why does the public need this sworn rather than ordinarily reported?
- **Symmetry:** Would DGG ask the same formulation of a similarly situated person with different politics?

If a prompt fails any check, move it to Lane B.

8.3 Form structure

Each record should contain:

1. record ID, version, date, and hash;
2. participant name and capacity, using no unnecessary identifiers;
3. purpose and voluntary-choice notice;
4. definitions and covered time period;
5. each prompt and the participant’s exact answer;
6. source-of-knowledge and qualification field;
7. explicit “unknown” and “decline” choices;
8. pre-execution correction/retraction opportunity;
9. oath or affirmation language;
10. participant signature and timestamp;
11. counsel-selected compliant in-person notarial certificate, with the statutory short form preferred; and
12. a public explanation that notarization does not prove truth.

9. Participant notice - minimum substance

The notice should be written in plain language and separately acknowledged:

Participation is voluntary. You may refuse the sworn format, refuse any question, consult counsel, ask for a break, say that you do not know, or add a qualification. DGG will not describe a refusal as proof of dishonesty or illegality. A Washington notary will verify the notarial act, your identity as required, your signature, and your oath or affirmation. The notary does not investigate or certify whether your factual answers are true. A knowingly false statement under an oath required or authorized by Washington law may create criminal exposure, including possible false swearing. First-degree perjury and Washington jurisdiction require additional elements. No charge or enforcement result is automatic, and DGG does not control prosecutors, courts, or interstate process. Washington treats an unqualified statement about something you do not know to be true like a knowingly false statement for this chapter. Use the “I do not know,” qualification, or decline options whenever appropriate. Correction rights under DGG policy are broader than any statutory defense. Correct or qualify anything inaccurate before execution. A substantive correction after execution requires a completely new notarial act and does not necessarily prevent liability.

Counsel should adapt the notice for each participant's location and the final procedure.

10. Accidental-trigger and correction protocol

If anyone believes a sworn answer may be inaccurate, inconsistent, outside the participant's knowledge, or misunderstood:

1. **Pause immediately.** Stop substantive questioning and do not publish or stream the segment.
2. **Do not accuse or coach.** The host may identify the ambiguity but must not supply a preferred factual answer.
3. **Return control to the participant and notary.** Ask whether the participant wants to correct, qualify, retract, decline, or consult counsel.
4. **Respect the execution boundary.** Before execution, allow participant-controlled correction and refreeze the complete record. After execution, do not edit the CSR; any substantive correction requires a completely new act and must not be promised as a statutory defense.
5. **Preserve the original.** Do not delete, overwrite, backdate, or silently substitute the original record, journal entry, or recordings.
6. **Segregate records.** The notary controls the legal archive; DGG controls its production copy. Each follows its own retention and access rules.
7. **Mark the item paused and unpublished.** Restrict access to need-to-know legal and security staff.
8. **Notify counsel.** Obtain Washington and participant-state advice before further questioning, publication, referral, or response to a third party.
9. **Create an append-only correction.** If publication later occurs, display the original and correction with timestamps and an explanation that does not adjudicate guilt.
10. **Document decisions.** Record who paused the session, what choices were offered, and why the final handling occurred.

No DGG employee should threaten referral, negotiate silence, destroy a record, or promise immunity.

11. Why a guarded pilot is worth doing

11.1 The legally honest value proposition

The format creates several benefits even if no criminal case is ever brought:

- a defined record rather than a moving clip;
- source-of-knowledge and scope qualifications;
- a visible boundary between fact and advocacy;
- a structured opportunity to say “unknown” rather than guess;

- a correction chain that preserves rather than rewrites history;
- consistent invitations and response labels; and
- data about whether speakers and audiences find the distinction useful.

11.2 Empirical support is promising but not transportable without testing

A 2025 *Nature Human Behaviour* megastudy tested 21 honesty-oath variants against a no-oath condition with 21,506 UK and US participants in an incentivized tax-reporting game. Ten variants significantly improved compliance by 4.5 to 8.5 percentage points; content mattered. [Zickfeld et al.](#)

A 2021 online crowd-work experiment collected 1,410 observations and analyzed 1,366 after exclusions. A voluntary oath reduced payoff-maximizing reports of ten heads from 17.8% to 12.9% - 4.9 percentage points, or about 27% relative - modestly reduced mean reporting from 6.33 to 6.06, and produced a nonsignificant change in shirking from 42% to 40%. Ten heads can occur truthfully, so the result is not a direct count of lies. The authors called the oath no panacea. [Jacquemet et al.](#)

A laboratory study found larger oath effects when the context expressly made the moral meaning of lying salient and weaker effects in a neutral setting. [Jacquemet et al., *Management Science*](#).

These results justify a falsifiable DGG pilot hypothesis. They do not establish effects for politicians, adversarial interviews, public reputational stakes, or criminal warnings. DGG should treat chilling, legalistic evasion, speaker selection, and audience overtrust as plausible adverse hypotheses to preregister and test - not as findings of the cited studies.

11.3 Preregistered outcomes

DGG should preregister at least:

- invitation and uptake rates by political/ideological category;
- question-level decline, unknown, and qualification rates;
- immediate and later correction rates;
- factual precision and source citation compared with matched unsworn interviews;
- audience comprehension that notarization does not certify truth;
- audience confidence calibration and false-confidence rate;
- participant perception of coercion or unfair surprise;
- notary refusal, technical failure, and privacy incident rates;
- editing disputes and correction turnaround; and
- evidence of unequal administration or partisan selection.

Success should require both improved factual discipline **and** no material increase in false audience confidence, coercion, or asymmetric treatment.

12. Public claims DGG may and may not make if a later phase authorizes publication

No public criminal-enforcement, refusal-status, or live-pilot claim is authorized during Phase 0. The table below is a wording boundary for later counsel review, not current publication permission.

Supported public language	Language to prohibit
"This is a voluntary sworn-record option."	"Honest people have nothing to fear."
"The signer declares truth; the notary checks required identity and signature, administers the oath or affirmation, and completes the certificate - not the truth of the claim."	"The notary certified these answers as true."

Supported public language	Language to prohibit
"A knowingly false sworn statement may have legal consequences."	"Any lie here is automatically perjury."
"False swearing is the clearest Washington offense to evaluate; perjury requires additional elements."	"The guest committed a felony by answering falsely."
"Washington jurisdiction over an out-of-state person is fact-dependent."	"Using our Washington notary submits every guest to Washington prosecution."
"Extradition is a possible downstream process only after a valid charge and other legal gates."	"Washington will extradite anyone who lies."
"The person declined the voluntary sworn-format invitation."	"The person refused to tell the truth."
"The format's effects are being tested."	"Science proves an oath makes politicians truthful."

13. Risk register and controls

Risk	Current judgment	Principal control
2026 standalone remote oral oath not expressly authorized	Unresolved; do not rely	No DGG remote act; preserve as quarantined research pending authoritative review
Overclaiming first-degree perjury	High reputational/legal risk	Treat as colorable and counsel-dependent; foreground false swearing
Missing Washington territorial jurisdiction	High for nonresidents	Participant-state/Washington review; never imply automatic reach
Defamatory refusal implication	Medium to high	No identified status through Phase 2; later use requires fresh review, exact facts, and anti-inference controls
Unlawful or overbroad recording	High	All-party recorded consent plus written layered release
Publication of notarial archive	High	Segregate archive; no-publication default; strict access control
Participant guesses under pressure	High	Unknown/qualification/decline options; no surprise sworn questions
Ineffective later correction	Medium	Immediate same-session opportunity; append-only later correction
Evidence spoliation or chain dispute	High after incident	Hashing, immutable originals, access logs, legal hold process
Audience overtrust in notarization	High	Repeated disclaimer; comprehension testing as pilot guardrail
Partisan or selective administration	High to mission legitimacy	Published criteria, mirrored prompts, external audit
Notary conflict or loss of independence	Medium	Independent contractor terms; notary controls the act and may refuse
Criminal-threat coercion	High	Plain notice, counsel access, no referral threats, separate host/notary roles

14. Systematic-review and process-integrity statement

This research used a consequential-claim method rather than citation accumulation:

1. Extracted each claim capable of changing launch, liability, or public messaging.
2. Prioritized Washington statutes, session laws, regulations, official guidance, and court opinions.
3. Searched adverse cases and statutory history, including *Hovrud*, the 1995 amendment, and the 2001 express reenactment.
4. Separated evidence-rule cases from criminal-element cases.
5. Separated present law from law effective January 1, 2027.
6. Treated territorial jurisdiction, offense elements, proof, charging, and extradition as independent gates.
7. Used behavioral studies only for the bounded empirical proposition that a pilot is rational.

8. Preserved unresolved issues rather than converting textual arguments into holdings.

No empirical meta-analysis was performed for this legal memorandum. The behavioral studies use different tasks, incentives, populations, and oath formulations; their results are not pooled here. The operational hypothesis should be tested prospectively in DGG's own setting.

15. Robustness and adversarial critique

The strongest critique is that DGG may add criminal symbolism without adding truth. A strategic participant could avoid falsehood through vague answers, selective qualification, or refusal. Audiences could mistake a valid jurat for government verification. Prosecutors may have no interest, and Washington may lack jurisdiction over the participants DGG most wants to invite.

Those critiques do not defeat a narrow pilot; they define its success conditions. DGG should proceed only if the product remains valuable when:

- no one is prosecuted;
- first-degree perjury is unavailable;
- many guests choose “unknown” or decline;
- interstate sessions are limited;
- the notarial archive is never published; and
- audience testing shows the disclaimer is understood.

If the format's value depends on viewers believing prosecution is easy or notarization establishes truth, the project should stop. If it improves precision, qualifications, provenance, corrections, and audience calibration without coercion or false confidence, it can succeed on a much more durable ground.

16. Recommendation

DGG should authorize only a **Phase 0 counsel-and-synthetic/tabletop build**. Any later pilot remains subject to cure of the internal adversarial audit remand and a new approval record.

Phase 0 - legal and technical validation

- final Washington counsel opinion on the exact form and false-swearing language;
- participant-state checklist;
- independent notary consulted on lawful completion/refusal, without asking the notary to approve content, select the certificate for DGG, or certify voluntariness;
- layered consent/release and privacy schedule;
- pure mock using fictional facts with no oath or notarial act; separately document, but do not execute, any proposed actual-test branch until a reviewed supersession closes the remand and limits it to literally true, personal-knowledge statements about the test itself;
- accidental-trigger tabletop exercise;
- immutable record/hash and correction-chain test;
- comprehension test for the public disclaimer; and
- external symmetry/bias review.

Phase 1 - deferred and not authorized

No Phase 1 activity begins until a reviewed supersession closes every mandatory remand item. Any later proposal must use the approved exact architecture, no livestream, a small number of advance prompts, a separately approved participant/location configuration, counsel review before any publication, full methodology/limitations, and a preregistered evaluation.

Phase 2 - decision

Expand only if the pilot improves factual precision or audience calibration, the disclosure is understood, refusals remain neutral, and no serious legal, privacy, notary-independence, or partisan-symmetry failure occurs.

17. Counsel gates before any live use

Washington counsel must answer in writing:

1. Does the exact proposed oath/verification satisfy current RCW 42.45 and chapter 308-30 WAC?
2. Is the 2026 fixed-record branch correctly separated from the 2027 standalone remote-oath branch?
3. How should *Hovrud* and the 1995 amendment be stated in participant notice?
4. Is the false-swearing description fair and sufficiently noncoercive?
5. Can the particular implementation plausibly be an official proceeding, and may DGG mention that perjury theory publicly?
6. What Washington nexus is required for each participant/location configuration?
7. How do limitations and nonresident tolling apply?
8. What correction, preservation, and referral procedures minimize obstruction, spoliation, or witness-related risk?
9. Does the recording/release architecture comply with all applicable jurisdictions?
10. What facts would require DGG to stop, preserve, notify, or obtain emergency advice?

No document should be labeled “launch-cleared” until the internal adversarial audit remand is closed through a reviewed supersession and these answers, the participant-state review, and the notary's limited written workflow confirmation are stored outside the public repository.

Conclusion

Washington law gives DGG enough legal infrastructure to continue a serious Phase 0 evaluation, not to claim launch readiness. The modern false-swearing text is stronger than the older adverse case because the legislature added an authorized-oath-administrator route in 1995 and expressly reenacted it in 2001. Current law contains a safeguarded fixed-record remote path and the 2027 law expands the framework, but present Phase 0 remains a pure fictional mock with no signer, oath, or notarial act. A nonpublic, in-person, Washington-only tangible-paper design is merely a future branch requiring reviewed supersession and every gate.

The defensible argument is therefore conditional and disciplined: a voluntary, provenance-rich sworn record may be viable after the remand and all fact-specific approvals are resolved. DGG must not sell notarization as truth certification or describe perjury, prosecution, or interstate surrender as expected. The project's civic value should be judged by better factual commitments, clearer qualifications, durable corrections, and better-calibrated audiences - not by whether anyone is prosecuted.

Supporting research records and project controls are maintained in the source repository. **Consequential-claim tracker:**
`research/GAP\_MATRIX.md` **Project controls:** `audit/PROJECT\_CONTROL.md`

Part II - Facts and Evidence Appendix

Purpose

This packet separates four things that are easy to blur:

1. facts verified about the current project;
2. assumptions used for legal analysis;
3. legal and empirical propositions supported by external sources; and
4. evidence that does not yet exist but would be required before launch or litigation.

It is a public research index. Counsel should create any privileged litigation file separately and decide what, if anything, may later be incorporated into a court record.

Current verified project facts

Fact ID	Verified fact	Evidence	Status / limit
PF-001	The repository describes a proposed Digital Ground Game voluntary sworn-statement format anchored in Washington law.	`README.md`; `PROJECT_CONTROL.md`	Repository description; DGG's legal entity and authority remain unverified.
PF-002	The controlling repository posture is REMANDED - CHANGES REQUIRED - NOT LAUNCH-CLEARED .	`CANONICAL_STATUS.md`	No live-use permission follows from any candidate document.
PF-003	While the remand remains open, present Phase 0 is limited to a pure fictional mock with no real signer, oath, or notarial act. A tightly controlled private Washington in-person test is a possible future branch only.	`CANONICAL_STATUS.md`; `DGG_PILOT_CONTROL_PACKET.md`	A reviewed supersession and every professional/internal gate are required before an actual test.
PF-004	No named candidate/public-figure participant, public invitation/refusal status, participant/program publication, livestream, remote DGG act, or criminal-enforcement claim is authorized.	`README.md`; `CANONICAL_STATUS.md`	This is a project control, not a statement that every such activity is unlawful.
PF-005	A research memorandum, source ledger, consequential-claim matrix, and Phase 0 control packet exist in the repository.	Repository file tree and `README.md`	They remain under correction and are not legal advice.
PF-007	The current work created publicly visible candidate public, outreach, evidence, and authority artifacts but did not authorize promotional distribution, recruitment, or operation.	This packet; `DGG_INFORMATION_PACKET.md`; `MESSAGE_AND_CLAIMS_TOOLKIT.md`	Candidate status must remain visible in every derivative.
PF-008	No pilot results, participant statements, candidate contacts, comprehension results, or operational incident record is contained in the reviewed public repository.	Repository audit through 2026-08-30	Absence from the public repository does not prove no external activity occurred; an authorized project representative must confirm.

Analytical assumptions - not verified facts

The memorandum's most favorable conclusions depend on these assumptions. They must not be stated as facts until an accountable owner supplies evidence.

Assumption ID	Assumption used	Why it matters	Required confirmation
AS-001	DGG is a genuinely private, nongovernmental actor.	First Amendment state-action analysis changes with government compulsion, joint operation, delegation, or entwinement.	Formation records, governance, contracts, funding, and government communications.

Assumption ID	Assumption used	Why it matters	Required confirmation
AS-002	Participation and every question-level response are meaningfully optional.	Coercion, unconstitutional-conditions, defamation, and product-integrity analysis depends on a real exit.	Final invitation, compensation/access terms, scripts, user testing, and complaint data.
AS-003	No benefit, penalty, ballot/debate access, public financing, credential, contract, censure, badge, or refusal label turns on participation.	Such features materially increase constitutional and election-law risk.	Product requirements, government/campaign agreements, and published UI inventory.
AS-004	The notary is independent and does not approve DGG's content, sources, legal theory, or marketing.	Notary-law compliance, false endorsement, and role separation.	Engagement terms, notary instructions, certificate request, and public copy.
AS-005	The sworn lane contains only narrow, objectively framed factual statements within the signer's stated knowledge.	False-speech, fair-warning, proof, and coercion analysis is far weaker for broad policy rhetoric or compound accusations.	Exact form and question-admission record.
AS-006	Notarial archives, journals, identity proofing, and credentials remain outside DGG's publicity and public Git repository.	Notary ownership, privacy, cybersecurity, evidentiary, and public-record risks.	Data-flow diagram, vendor terms, access list, and retention schedule.
AS-007	Phase 0 remains candidate-, party-, and ballot-neutral and involves no coordination or paid electoral distribution.	Campaign-finance, political-advertising, sponsor, lobbying, and defamation analysis.	Entity/payer facts, contact log, expenditure ledger, media plan, and selection criteria.
AS-008	No government agency receives or uses participant-level material.	Public-records and retention duties may attach once an agency prepares, owns, uses, or retains a record.	Recipient and data-transfer inventory.

Critical facts still missing

Record 1

Missing fact ID: MF-001

Required fact: DGG legal name, entity type, jurisdiction, tax status, FEC/PDC status, governance, and authority to act

Owner: DGG principal and counsel

Why consequential: Determines duties, standing, exemptions, representations, and responsible parties

Acceptance evidence: Certified formation/governance summary and counsel classification

Record 2

Missing fact ID: MF-002

Required fact: Complete ownership, donor/funder, payer, vendor, and in-kind support facts

Owner: Finance/compliance owner

Why consequential: Campaign-finance, lobbying, tax, coordination, disclosure, and conflict rules

Acceptance evidence: Signed funding map and contemporaneous ledger

Record 3

Missing fact ID: MF-003

Required fact: Candidate, party, committee, officeholder, government, or common-vendor contacts

Owner: Compliance owner

Why consequential: Coordination, state action, forum, lobbying, and record-preservation analysis

Acceptance evidence: Dated contact log and custodian declaration

Record 4

Missing fact ID: MF-004

Required fact: Exact intended audience, geography, distribution media, paid amplification, timing, and call to action

Owner: Communications owner

Why consequential: Political advertising, independent expenditures, broadcast/cable rules, grassroots lobbying, and participant-state law

Acceptance evidence: Final media plan and written legal classification

Record 5

Missing fact ID: MF-005

Required fact: Exact statement form, jurat/certificate request, notice, consent, release, and correction terms

Owner: Washington/media counsel

Why consequential: Oath validity, coercion, recording, publication, proof, and defamation

Acceptance evidence: Counsel-approved locked versions with hashes

Record 6

Missing fact ID: MF-006

Required fact: Notary commission, endorsements, location, platform, conflict review, instructions, and record separation

Owner: Notary and notarial counsel

Why consequential: Validity and compliance of the exact act

Acceptance evidence: Limited written workflow confirmation; no content endorsement

Record 7

Missing fact ID: MF-007

Required fact: Participant identity, citizenship/residence, physical location, office/candidate status, duty nexus, and governing-law contacts

Owner: Participant-state counsel

Why consequential: Territorial jurisdiction, limitations, professional/ethics rules, recording, privacy, and interstate process

Acceptance evidence: Privileged participant configuration memo outside public repo

Record 8

Missing fact ID: MF-008

Required fact: Data inventory, vendors, access roles, encryption, incident response, retention/deletion, legal hold, and government transfers

Owner: Privacy/security owners

Why consequential: Privacy, breach, biometrics, public records, evidence integrity, and spoliation

Acceptance evidence: Approved data-flow and retention/security schedule

Record 9

Missing fact ID: MF-009

Required fact: Neutral selection criteria, mirrored prompts, disability/language access, and appeal/correction process

Owner: Methods/accessibility owners

Why consequential: Partisan symmetry, discrimination, coercion, credibility, and research validity

Acceptance evidence: Preregistered protocol and external bias/accessibility review

Record 10

Missing fact ID: MF-010

Required fact: Comprehension, coercion, false-confidence, and adverse-effect results

Owner: Independent methods reviewer

Why consequential: Determines whether disclaimers actually work

Acceptance evidence: Preregistered instrument, anonymized data, code, and signed analysis

Source propositions and project inferences

The controlling wording, limitations, and next steps are in `GAP\_MATRIX.md`. This table identifies the most consequential proof chain.

Record 1

ID: WA-OATH-01

Direct source proposition: Washington defines administering an oath and taking a verification as notarial acts and prescribes presence and signing requirements.

Project inference: A fixed, narrow record can be evaluated for a compliant Washington act.

Full citation / pinpoint: RCW 42.45.010(8), (15); .020 - .030; chapter 5.28 RCW

Authority / citator status: Official statutes checked 2026-08-30

Limit: Exact act, certificate, identity, presence, capacity, and refusal requirements remain fact-specific.

Record 2

ID: NOTARY-TRUTH-01

Direct source proposition: The signer declares a statement true under oath; the statutes assign the officer the notarial act and certificate.

Project inference: DGG must describe the notary as administering/certifying the act, never investigating or certifying political truth.

Full citation / pinpoint: RCW 42.45.010(15), .030, .150; chapter 308-30 WAC

Authority / citator status: Official code/rules checked; division-of-role conclusion is an inference

Limit: The exact notary workflow remains a professional gate.

Record 3

ID: WA-FS-01

Direct source proposition: RCW 9A.72.040 defines false swearing; RCW 9A.72.010(5) defines qualifying oath routes.

Project inference: Counsel may evaluate false swearing as a possible reference point for a knowingly false authorized oath.

Full citation / pinpoint: RCW 9A.72.010(5), .040; *In re Recall of Pearsall-Stipek*, 141 Wn.2d 756, 765 - 66 (2000)

Authority / citator status: Official statute checked; official reporter/citator pending

Limit: No square DGG-like case was located; constitutional application is unresolved.

Record 4

ID: WA-PERJ-01

Direct source proposition: First-degree perjury requires a materially false statement in an official proceeding; *Jacobson* involved an affidavit submitted and used in court.

Project inference: Repository research did not locate controlling authority establishing that a DGG-style private session is an official proceeding.

Full citation / pinpoint: RCW 9A.72.010(4), .020; *State v. Jacobson*, 74 Wn. App. 715, 719 - 22 (1994)

Authority / citator status: Search completeness and licensed-citator treatment open

Limit: Do not advertise automatic felony exposure.

Record 5

ID: CONST-FALSE-SPEECH-01

Direct source proposition: *Alvarez* rejected the proposition that falsity alone is categorically unprotected; *Rickert* and *119 Vote No!* invalidated the challenged campaign-speech applications through fractured opinions.

Project inference: A public truth tribunal, broad complaint process, or oath-based shortcut is constitutionally dangerous.

Full citation / pinpoint: *Alvarez*, 567 U.S. 709, 717 - 23, 729 - 36 (2012); *Rickert*, 161 Wn.2d 843, 848 - 56 (2007); *119 Vote No!*, 135 Wn.2d 618, 625 - 28 (1998)

Authority / citator status: Official/primary copies checked; licensed citator and reporter review pending

Limit: Plurality/concurrence posture matters; narrow harm-linked laws may survive.

Record 6

ID: CONST-COERCION-01

Direct source proposition: *A/D v. AOS/* limits certain compelled positions outside a funded program; *Ancheta* addressed an optional pledge combined with nonsigner identification and censure; *SBA List* addressed pre-enforcement injury.

Project inference: Voluntariness can be undermined by labels, access conditions, complaint burdens, or censure.

Full citation / pinpoint: 570 U.S. 205, 214 - 21 (2013); 135 F. Supp. 2d 1114, 1124 - 29 (D. Haw. 2001); 573 U.S. 149, 158 - 67 (2014)

Authority / citator status: *Ancheta* persuasive only; all consequential cases need citator review

Limit: Posture and government role differ from a private Phase 0 study.

Record 7

ID: CONST-GOV-REGISTRY-01

Direct source proposition: Government-speech/forum status depends on history, public perception, control, and access rules; private entities ordinarily are not state actors.

Project inference: A government repository cannot inherit the private Phase 0 analysis.

Full citation / pinpoint: *Shurtleff v. Boston*, 596 U.S. 243, 252 - 59 (2022); *Manhattan Community Access Corp. v. Halleck*, 587 U.S. 802, 808 - 14 (2019)

Authority / citator status: Official Supreme Court sources checked; citator pending

Limit: Highly fact-dependent.

Record 8

ID: WA-PUBLIC-RECORDS-01

Direct source proposition: Washington defines public records by preparation, ownership, use, or retention in connection with government conduct and separately governs retention.

Project inference: Agency receipt or use could change disclosure and retention posture.

Full citation / pinpoint: RCW 42.56.010(3); RCW 40.14.010

Authority / citator status: Official statutes checked 2026-08-30

Limit: Exemptions and schedules are record/function specific.

Record 9

ID: WA-OUTREACH-01

Direct source proposition: Washington defines grassroots lobbying, political advertising, and related reporting categories.

Project inference: Legislative advocacy or candidate/ballot mass communication requires a fact-specific classification before release.

Full citation / pinpoint: RCW 29B.50.100; WAC 390-20-150; RCW 29B.10.410, 29B.30.050

Authority / citator status: Official code/rules checked; current thresholds and facts remain gates

Limit: Purpose, payer, content, distribution, contacts, expenditures, and timing control.

Record 10

ID: MARKETING-TOOLS-01

Direct source proposition: CDC and Census materials support comprehension and communication pretesting methods.

Project inference: A short explainer and synthetic demonstration are reasonable test candidates.

Full citation / pinpoint: CDC Clear Communication Index and testing guidance; Census Statistical Quality Standard A2

Authority / citator status: Official methods sources checked; not legal authority

Limit: The sources do not rank DGG channels or prove any asset will work.

Litigation and dispute postures to anticipate

These are planning scenarios, not predictions that litigation is ripe or advisable.

Scenario A: challenge to a government mandate, label, or condition

Potential issues include compelled speech, political-speech burden, unconstitutional conditions, viewpoint discrimination, disclosure/association, election regulation, due process, and Washington constitutional protections. Material facts would include who controls the program, what consequence follows nonparticipation, whether an entry is government or private speech, who may complain, what interim label appears, and what appeal exists.

Potential relief could include declaratory or injunctive relief against a mandate, label, disclosure, or complaint process. Standing, ripeness, defendants, immunity, exhaustion, and remedy require fact-specific counsel analysis. *SBA List* illustrates pre-enforcement injury but does not decide merits.

Scenario B: dispute over a private publication or status

Potential issues include defamation, false light, privacy, recording consent, contract/release, unfair or deceptive presentation, and Washington's Uniform Public Expression Protection Act. The decisive record would include the exact invitation, response, edit, caption, adjacent disclaimer, source basis, knowledge of error, correction timing, distribution, and damages.

The safest current control is to publish no named invitation, refusal, or nonresponse status and no operator "false" verdict.

Scenario C: investigation or charge based on a sworn record

Potential issues include validity and authorization of the oath, statement wording, knowing falsity, materiality and official proceeding if perjury is alleged, territorial jurisdiction, corroboration, constitutional application, limitations, custody/authentication, prosecutorial discretion, and interstate process.

DGG cannot create or promise a charge. It should preserve potentially relevant evidence, stop public speculation, and obtain counsel before any referral, interview, correction, or deletion. A private accusation or affidavit does not itself become a prosecution; see *Stout v. Felix* and RCW 36.27.020.

Scenario D: public-records or retention dispute

If a government agency receives, uses, or co-administers records, likely issues include whether the material relates to government conduct, who owns/uses/retains it, applicable exemptions, redaction, retention schedules, litigation holds, and production format. The project should assume that sending a record to government can change its disclosure posture.

Scenario E: campaign-finance or lobbying complaint

The record must identify the speaker/payer, sponsor, purpose, candidate or ballot content, medium, audience, distribution date, spend, vendor, candidate contacts, material involvement, legislative call to action, and reporting timeline. A label such as “education,” “press,” or “research” is not dispositive.

Element-to-proof ledger

This public template does not assert that any claim is ripe. Counsel should adapt it in a restricted matter file if a real dispute arises.

Record 1

Issue / element: Private actor / state action

Material fact: Entity, funding, government direction, joint operation, access conditions

Supported / disputed / unknown: Unknown

Source: MF-001 - MF-003

Custodian: Pending

Acquisition method and time: Pending

Authentication witness: Pending

Hearsay / admissibility concern: Formation and communications foundation

Contrary evidence: Adverse government/control contacts must be logged

Public / confidential / privileged: Classification pending

Exhibit ID: B-001

Record 2

Issue / element: Voluntary participation

Material fact: Invitation, alternatives, compensation/access, scripts, observed pressure

Supported / disputed / unknown: Unknown

Source: MF-005, MF-009 - MF-010

Custodian: Pending

Acquisition method and time: Pending

Authentication witness: Pending

Hearsay / admissibility concern: Participant and protocol foundation

Contrary evidence: Complaints, dropout, disparate impact, third-party pressure

Public / confidential / privileged: Classification pending

Exhibit ID: B-002/B-004

Record 3

Issue / element: Valid oath / notarial act

Material fact: Exact record, act, certificate, presence, identity, capacity, commission

Supported / disputed / unknown: Unknown; no live act authorized

Source: MF-005 - MF-007

Custodian: Pending

Acquisition method and time: Pending

Authentication witness: Notary and custodian

Hearsay / admissibility concern: Original-record and business/public-record questions

Contrary evidence: Defect, refusal, or role confusion

Public / confidential / privileged: Restricted

Exhibit ID: B-002/B-005

Record 4

Issue / element: Knowing falsity / materiality / official proceeding

Material fact: Exact proposition, knowledge basis, truth evidence, use and proceeding

Supported / disputed / unknown: Unknown; no participant statement exists

Source: MF-005, MF-007

Custodian: Pending

Acquisition method and time: Pending

Authentication witness: Declarant, source custodian, investigators

Hearsay / admissibility concern: Opinion, ambiguity, source reliability, constitutional limits

Contrary evidence: Exculpatory sources and qualifications required

Public / confidential / privileged: Restricted / privileged

Exhibit ID: B-005

Record 5

Issue / element: Publication / implication

Material fact: Invitation, response, edit, caption, disclaimer, distribution, knowledge of error

Supported / disputed / unknown: Unknown; participant/program and promotional publication not authorized

Source: MF-004 - MF-005, MF-009

Custodian: Pending

Acquisition method and time: Pending

Authentication witness: Editor and platform custodian

Hearsay / admissibility concern: Context, substantial truth, fault, damages

Contrary evidence: Corrections and favorable context

Public / confidential / privileged: Classification pending

Exhibit ID: Pending

Record 6

Issue / element: Campaign / lobbying classification

Material fact: Entity, payer, purpose, content, distribution, contacts, spend, timing

Supported / disputed / unknown: Unknown

Source: MF-001 - MF-004

Custodian: Pending

Acquisition method and time: Pending

Authentication witness: Finance/compliance custodians

Hearsay / admissibility concern: Completeness of ledgers and communications

Contrary evidence: Common-vendor, in-kind, coordination, electoral-purpose facts

Public / confidential / privileged: Restricted summary

Exhibit ID: Pending

Evidence handling rules

For every later record:

1. assign a stable record and version ID before collection;
2. record source, custodian, collection method, time zone, and acquisition time;
3. preserve the received original read-only and compute a SHA-256 digest over a documented byte scope, recording time zone, tool/version, expected value, and every verification result;
4. separate public, confidential, privileged, notarial, identity, security, and legal-hold stores;
5. document every transformation, redaction, excerpt, and derivative;
6. preserve corrections as new linked records rather than rewriting an original;
7. suspend ordinary deletion when counsel issues a litigation hold;
8. never place privileged advice or protected identity material in this public repository; and
9. do not imply that hashing proves substantive truth - it shows only whether the hashed bytes changed.

Readiness finding

The repository contains an organized, source-linked research record, but not a litigation-complete factual record. It can presently support:

- design and internal review of a private, fictional comprehension test, but not recruitment or execution until its missing infrastructure and approvals exist;
- further counsel review of a narrow provenance-centered design;
- adversarial evaluation of constitutional and operational risks; and
- a source-backed explanation of why the concept is worth testing.

It cannot presently support:

- a filed merits position adopted by counsel;
- a live or named participant program;
- a representation that the system has proven efficacy;
- a government, ballot, debate, funding, or official-recognition condition;
- a refusal registry, truth verdict, censure, or criminal referral promise; or
- a claim that the litigation record, citator review, entity facts, public-records plan, campaign/lobbying classification, or data architecture is complete.

Part III - Selected Authority Appendix

Core constitutional and election-speech authorities

ID	Authority and official source	Project use	Material limit / adverse point
CON-US-01	U.S. Const. amend. I	Government speech restrictions, compelled speech, association, and political-speech baseline.	Does not regulate a genuinely private publisher merely because a commissioned notary performs an act. State action and coercion remain fact-dependent.
CON-WA-01	Wash. Const. art. I, §§ 5 - 7, 12	Washington free-speech, oath, privacy, and privileges/immunities baselines.	Section 6 validates conscience-binding modes of oath; it does not make every sworn statement a prosecutable offense.
WA-ELECT-01	RCW 29B.30.070	Current, narrow Washington false-political-advertising statute and legislative findings.	Requires specified defamatory content, actual malice, and clear-and-convincing proof; it is not a general truth commission. Title 29B took effect in 2026.
CASE-WA-RICKERT	*Rickert v. Public Disclosure Commission*, 161 Wn.2d 843, 168 P.3d 826 (2007)	Controlling warning against government adjudication of nondefamatory campaign falsity.	Official-court page supplies docket metadata but redirects the current opinion text to Washington Reports; obtain reporter copy and citator treatment before reliance.
CASE-WA-119	<i>State ex rel. Public Disclosure Commission v. 119 Vote No! Committee</i> , 135 Wn.2d 618, 957 P.2d 691 (1998)	Plurality warning that government may not direct political debate or serve as guardian of the public mind.	Plurality posture; official opinion copy and current treatment remain counsel gates. Current legislative findings summarize the decision.
CASE-US-ALVAREZ	*United States v. Alvarez*, 567 U.S. 709 (2012)	Falsity alone is not a categorical exception to the First Amendment; broad content-based criminalization is constitutionally dangerous.	No single rationale controlled all applications. Narrow laws tied to legally cognizable harm, fraud, perjury, or government process require separate analysis.
CASE-US-SBA	*Susan B. Anthony List v. Driehaus*, 573 U.S. 149 (2014)	Demonstrates pre-enforcement standing risk created by a broad campaign-falsity complaint regime.	Standing decision, not a merits holding that every false-campaign-speech rule is invalid.
CASE-US-AID	*Agency for International Development v. Alliance for Open Society International*, 570 U.S. 205 (2013)	Government may define a funded program but cannot ordinarily compel a participant's belief or speech outside the program.	A genuinely private, optional format presents a different state-action question.
CASE-US-SHURTLIFF	*Shurtleff v. Boston*, 596 U.S. 243 (2022)	Government-speech/private-forum classification turns on history, public perception, and actual control.	A neutral repository open to private speakers may be a forum rather than government speech; branding alone is not dispositive.
CASE-US-AFPF	*Americans for Prosperity Foundation v. Bonta*, 594 U.S. 595 (2021)	Compelled disclosure can burden association and must be narrowly tailored under exacting scrutiny.	Does not prohibit voluntary, informed disclosure by participants; collection and publication must remain genuinely optional and minimized.
CASE-US-MCINTYRE	*McIntyre v. Ohio Elections Commission*, 514 U.S. 334 (1995)	Anonymous political advocacy receives strong protection.	Does not prevent a speaker from voluntarily attaching identity to a record; government-conditioned identity disclosure is a separate issue.
CASE-US-BURDICK	*Burdick v. Takushi*, 504 U.S. 428 (1992)	Election regulations are assessed according to the character and magnitude of the burden and the state's interests.	Does not validate a candidate truth badge, ballot label, or oath condition.
CASE-US-WHITE	*Republican Party of Minnesota v. White*, 536 U.S. 765 (2002)	Candidate speech lies at the core of First Amendment protection.	Judicial-election context; exact rule and governmental role matter.
CASE-HI-ANCHETA	*Ancheta v. Watada*, 135 F. Supp. 2d 1114 (D. Haw. 2001)	Closest located adverse comparator: optional pledge plus public non-signer identification and censure can still coerce and chill speech.	Federal trial-court decision outside Washington; source mirror is not an official court repository. Verify full docket, later history, and citator status.

Oath, notarial, criminal-process, and evidence authorities

ID	Authority and official source	Project use	Material limit / adverse point
WA-OATH-STAT	Chapter 5.28 RCW	General authority and form for administering Washington oaths.	Does not answer every certificate question under chapter 42.45 RCW.
WA-FS-STAT	Chapter 9A.72 RCW	Defines oath, official proceeding, first- and second-degree perjury, false swearing, proof, retraction, and lack-of-knowledge rules.	Offense elements, territorial jurisdiction, proof, discretion, and constitutional application remain independent gates.
WA-NOTARY-STAT	Chapter 42.45 RCW	Governs verifications, presence, identity, refusal, certificates, journals, prohibited conduct, and remote acts.	A notary authenticates the act, identity, signature, and oath - not factual truth; pending 2027 changes require version control.
WA-NOTARY-WAC	Chapter 308-30 WAC	Operational rules for Washington notaries, fees, journals, technology, and remote acts.	Rules are subject to active implementation work; recheck before any use, particularly after 2027-01-01.
WA-2027-NOTARY	2026 Wash. Laws ch. 21	Enacted future-law expansion for remote tangible records and standalone remote oaths.	Effective 2027-01-01, not on the research cutoff; rulemaking and certificate treatment remain open.
CASE-WA-HOVRUD	*State v. Hovrud*, 60 Wn. App. 573, 805 P.2d 250 (1991)	Strict-construction and fair-warning adverse authority under the pre-1995 oath definition.	Predates the 1995 authorized-administrator amendment; official opinion and current treatment remain gates.
CASE-WA-PEARSALL	*In re Recall of Pearsall-Stipek*, 141 Wn.2d 756, 10 P.3d 1034 (2000)	Confirms false swearing lacks an official-proceeding/materiality element and discusses retraction.	Recall-sufficiency posture, not a criminal conviction; nonofficial mirror pending official reporter verification.
CASE-WA-LEWIS	*State v. Lewis*, 85 Wn.2d 769, 539 P.2d 677 (1975)	Narrow oath-formality proposition.	Notary-absence facts and limited holding do not validate defective notarization generally.
CASE-WA-JACOBSON	*State v. Jacobson*, 74 Wn. App. 715, 876 P.2d 916 (1994)	Affidavit submitted and used in court can be "in" an official proceeding; illustrates strong Washington effects.	Does not decide whether a private media session is an official proceeding or whether ordinary political publication creates territorial jurisdiction.
CASE-WA-ARQUETTE	*State v. Arquette*, 178 Wn. App. 273, 314 P.3d 426 (2013)	Washington's heightened corroboration rule for perjury.	Does not establish every false-swearing proof rule or prove guilt from a contradiction or fact-check.
CASE-WA-STOUT	*In re Citizen Complaint by Stout v. Felix*, 198 Wn.2d 180, 493 P.3d 1170 (2021)	Criminal charging remains an executive/public function; a private affidavit does not create a prosecution.	Majority and concurrence must be distinguished; use only after reporter/citator verification.

Publication, privacy, records, and outreach authorities

ID	Authority and official source	Project use	Material limit / adverse point
WA-ANTI-SLAP P-01	Chapter 4.105 RCW	Washington Uniform Public Expression Protection Act; procedural risk in suits based on public-expression activity.	Does not immunize defamation, privacy violations, or unsupported accusations; exclusions and burden-shifting require exact analysis.
WA-PRA-01	Chapter 42.56 RCW	Public-records and privacy rules if a Washington agency receives or maintains program records.	No generic exemption was located for candidate sworn submissions; exemptions are specific and must be applied record by record.
WA-RETENTIO N-01	RCW 40.14.010	Broad public-record definition relevant to agency retention.	Retention periods come from applicable schedules and agency function, not this definition alone.
WA-UETA-01	Chapter 1.80 RCW	Legal recognition and agency controls for electronic records/signatures.	Does not override specific notarial, public-records, security, or agency-acceptance requirements.
WA-LOBBY-01	Chapter 29B.50 RCW	Lobbying and grassroots-lobbying classification for outreach meant to influence legislation.	Current PDC-adjusted thresholds, definitions, exemptions, payer facts, and timing must be rechecked before a public campaign.
CASE-WA-TAN	*Tan v. Le*, 177 Wn.2d 649, 300 P.3d 356 (2013)	Washington defamation elements, public-figure fault, and context/rhetorical-hyperbole analysis.	Court-hosted slip opinion may be superseded by reporter edits; current treatment remains a counsel gate.
CASE-WA-SISL EY	*Sisley v. Seattle Public Schools*, 180 Wn. App. 83 (2014)	Defamation-by-implication and falsity requirements.	Exact context and omissions control; a disclaimer is not a safe harbor.
CASE-WA-JHA	*Jha v. Khan*, 24 Wn. App. 2d 377 (2022)	Washington false-light and implication limits.	Verify current reporter and treatment; substantially true facts may still require contextual analysis.

Voluntary-program comparators

ID	Authority and official source	Project use	Material limit / adverse point
COMP-IL-01	10 ILCS 5/29B-10	Official example of a voluntary fair-campaign pledge.	Does not establish efficacy or validate a notarized truth-enforcement system.
COMP-ME-01	21-A M.R.S. § 1101	Official moral fair-campaign pledge comparator.	Aspirational language and local administration differ from DGG's proposed record format.
COMP-UT-01	Utah Code § 20A-9-206	Official voluntary, public-record pledge with a short retention rule.	Public filing does not prove constitutional safety for refusal labels, truth adjudication, or criminal framing.
COMP-WV-01	W. Va. Code § 3-1B-5	Official voluntary fair-campaign pledge comparator.	Comparator only; wording, enforcement, and constitutional history require separate review.

Design conclusions supported by the combined record

1. **Private-first is the most defensible path.** While remanded, Phase 0 is only a private, nonpublic fictional mock with no signer, oath, or notarial act. A later private nonprofit repository is lower risk than a state truth-adjudication office, but still requires reviewed supersession and defamation, privacy, campaign-law, notarial, methods, and neutrality review.
2. **Authenticate provenance, never “truth.”** The durable public object, if later authorized, is the exact statement, identity/act provenance, source bundle, version, and correction history. The notary does not adjudicate content.
3. **No coercive status architecture.** Do not publish a nonparticipant blacklist, ballot badge, refusal label, censure, benefit/penalty, or enforcement recommendation. *Ancheta*, *Rickert*, *119 Vote No!*, and *Alvarez* make those features central adverse risks.

4. **No automatic criminal claim.** Potential false swearing is fact-specific and constitutionally untested in this setting; perjury, jurisdiction, proof, charging, and interstate process require additional predicates.
5. **Outreach starts with comprehension, not conversion.** The current transparent-repository ask is to review and critique the packet. A later controlled comprehension test requires the missing owner, response, privacy/consent, accessibility, retention, and methods infrastructure; neither stage asks anyone to take an oath or pressure a candidate.